**IN THE NATIONAL COMPANY LAW TRIBUNAL, NEW DELHI**
**COURT-V**

**Item No.-514**

CP (CAA) No.-89/230/232/ND/2020 (2nd Motion)

**IN THE MATTER OF:**
ANU Nivasam Pvt. Ltd. With AJ Habitat Pvt. Ltd. **....Applicant**

**SECTION**
U/s 230-232 **Order delivered on 03.10.2022**

**CORAM:**
**SHRI P.S.N. PRASAD,**
**HON'BLE MEMBER (JUDICIAL)**

**SHRI RAHUL BHATNAGAR,**
**HON'BLE MEMBER (TECHNICAL)**

**PRESENT:**
For the Applicant — Ms. Pooja Bhatia, PCS and Mr. Mukesh Sukhija, Mr. Milind Gautam, Advs.

For the Respondent

**ORDER**

Heard the submissions made by Ld. Counsel for the Petitioners. This is a case where despite service of notice the Income Tax Department has not yet filed their reply. Therefore, Section 230(5) is automatically attracted. The Income Tax Department is now set as ex-parte and the matter will be proceeded further in their absense. For arguments, list the matter on **18.10.2022.**

**(RAHUL BHATNAGAR)**
**MEMBER (T)**

**(P.S.N. PRASAD)**
**MEMBER (J)**

Amit Tiwari